

BEFORE THE FEDERAL MARITIME COMMISSION

MEDITERRANEAN SHIPPING COMPANY -
INVESTIGATION FOR COMPLIANCE WITH §§
41104(a) AND 41102 OF DEMURRAGE OR
DETENTION CHARGES UNDER THE CHARGE
COMPLAINT PROCEDURES OF 46 U.S.C. § 41310

DOCKET NO. CC-001

**MEDITERRANEAN SHIPPING COMPANY S.A.
AMENDED MOTION FOR CONFIDENTIAL TREATMENT OF PORTIONS
OF ITS RESPONSE
TO THE ORDER TO SHOW CAUSE AND EXHIBITS**

Respondent Mediterranean Shipping Company S.A. (“MSC”) hereby moves pursuant to 46 C.F.R. §§ 502.69 and 502.5(b) to seek confidential treatment of certain additional portions of Respondent’s Response to the FMC Commissioners’ Order Directing Mediterranean Shipping Company S.A. to Show Cause (“Response”) and Exhibit A submitted therewith. (“Motion”).

MSC’s Response references to an Ocean Service Agreement (or its Amendment(s)) between MSC and non-party, Kingwood Logistics LTD dba Kingwood Ocean Container Line dba Dachser Ocean Container Line (“Dachser”). (“Ocean Agreement”).

The Ocean Agreement attached to MSC’s Response as Exhibit A is subject to a confidentiality provision that prevents the disclosure of its terms unless certain conditions are met. As to the date of this Motion the conditions for disclosure have not been met.

Additionally, the contractually agreed upon rates that are enclosed to the Ocean Agreement as Appendix II (“Rates”) were privately negotiated between the Respondent and

Dachser and are, therefore, also confidential. Disclosure of the Rates would damage the commercial interests and competitiveness of the parties to the Ocean Agreement.

Lastly, certain rates contractually negotiated between MSC and Dachser are also referred to in Exhibit D and should be treated as confidential.

For the foregoing reasons, Respondent respectfully requests that:

1. The portions of the Response referencing to the terms of the Ocean Agreement, as well as the terms of the Ocean Agreement and the Rates that are attached as Exhibit A, or referred to in Exhibit D, to MSC's Response be kept confidential.
2. Be allowed to submit a public redacted version of the material for which it seeks confidentiality pursuant to 46 C.F.R. § 502.5(a)(2).

Dated: March 3, 2023

Respectfully submitted,

/s/Vincent M. DeOrchis

/s/Wook Chung

/s/Kaspar Kielland

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Co-Counsel for Respondent

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CERTIFICATE OF SERVICE

I certify that on the 3rd day of March 2023, a true and correct copy of the foregoing Motion was served by email on all counsel of record in accordance with 46 CFR Part 502.

/s/Kaspar Kielland

Kaspar Kielland

FEDERAL MARITIME COMMISSION

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